

મેસર્સ મિંદલ સ્ટીલ સ્ટં પાવર લિમિ.
દ્વારા મુખિગત પાઈપ લાઈન વિદ્યુત લેલુ

AREA:- 1.410 HA.

Encl:- 1. 1st stage approval letter
11/09/2015
2. 2nd stage approval letter
02/12/2016



भारत सरकार
GOVERNMENT OF INDIA
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय
MINISTRY OF ENVIRONMENT, FORESTS
& CLIMATE CHANGE E-mail: moefregionalofficenagpur@gmail.com

Regional Office (WCZ)
Ground Floor, East Wing
New Secretariat Building
Civil Lines, Nagpur - 440001

No. FC-I/CH-02/2015-NGP/ 293

Date: 11/09/2015.

To,

The Principal Secretary,
Govt. of Chhattisgarh,
Forest Department,
Mantralaya, Mahanadi Bhavan,
New Raipur (CG).

Sub: Re-diversion of 1.410 ha forest land (0.658 ha RF/PF land and 0.752 ha Revenue forest land) for laying underground pipeline in Kelo Dam project in Raigad District.

Sir,

Reference is invited to State Government letter No. F-5-18/2015/10-2 dated 23/05/2015 on the above mentioned subject seeking prior approval of the Central Government under Section-2 of the Forest (Conservation) Act, 1980.

In this regard, approval of Central Government was granted under Section-2 of the Forest (Conservation) Act, 1980 for Diversion of 361.901 ha of forest land for construction of Kelo Irrigation Project in Raigarh, Chhattisgarh vide letter No. 8-110/2006-FC dated 13/08/2008. Now an application has been received for Diversion of 1.410 ha forest land (0.658 ha RF/PF land and 0.752 ha Revenue forest land) for laying underground pipeline in Kelo Dam project in Raigad District which is passing through the area which was earlier diverted to Water Resource Department.

After due consideration of the above proposal of the State Government, the undersigned, on behalf of the Central Government, is hereby to convey in-principle approval for Diversion of Re-diversion of 1.410 ha forest land (0.658 ha RF/PF land and 0.752 ha Revenue forest land) for laying underground pipeline in Kelo Dam project in Raigad District subject to the following conditions:-

1. Legal status of the forest land shall remain unchanged.
2. All the funds received from the User Agency under the project shall be transferred to the Ad-hoc Compensatory Afforestation Fund Management & Planning Agency (CAMPA) in Savings Bank A/c No. SB 01025203 Corporation Bank, Lodhi Complex, New Delhi-110003 of Chhattisgarh state.
3. Compensatory Afforestation shall be taken up by the Forest Department over 1.578 ha on non forest land (Kasra No.625, 626, 611/1 & 611/2) Village - Pata, District-Raigarh at the cost of the User Agency. Compensatory Afforestation will be of a mix of local indigenous species and monoculture of species will be avoided. The cost of Compensatory Afforestation scheme including cost of survey, demarcation and erection of boundary pillars at the prevailing wage rate and maintenance there of for

Conveyed

10 years shall be deposited in advance with the Forest department by the User Agency. The scheme may include appropriate provision for anticipated cost increase for works scheduled for subsequent years. Cost to raise Compensatory Afforestation shall however be recovered from the secondary user agency if the same in respect of the forest land proposed for re-diversion has not already been recovered from the primary user agency

4. Land identified for CA shall be clearly depicted on a Survey of India Toposheet of 1:50,000. The bearing of each corner point and distances between two successive points will be recorded along with the GPS readings of Geo coordinates (Latitudes & Longitudes).
5. The State Government shall charge the "Net Present Value" (NPV) for 1.410 ha of forest land to be diverted under the proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 30/10/2002, 01/08/2003, 28/03/2008 and 09/05/2008 in IA No. 566 in WP (Civil) No. 202/1995 and as per the guidelines issued by the Ministry vide letters No. 5-1/1998-FC(Pt. II) dated 18/09/2003 as well as letter No. 5-2/2006-FC dated 03/10/2006 and 5-3/2007-FC dated 05.02.2009 in this regard and others.
6. Additional amount of the NPV of diverted forest land, if any, becoming due after finalization of the same by the Hon'ble Supreme Court of India on receipt of the report from the Expert Committee, shall be charged by the State Government from the User Agency, which shall furnish an undertaking to this effect.
7. Full amount of NPV for the re-directed land, at the rate applicable on the date of re-diversion, shall be realised from the second user agency by the State/UT Government concerned.
8. Boundary of the re-diverted forest land shall be clearly demarcated on the ground by the second user agency.
9. To prevent any speculative trade in forest land no amount in the name of lease rent, annual fee/rent or any other such name shall be levied by the primary user agency from the secondary user agency in whose favour the forest land is re-diverted. However, in case the activity to be undertaken by the secondary user agency results in damage to the structure/property of the primary user agency, the same shall be restored by the secondary user agency to the full satisfaction of the primary user agency.
10. The State Government shall complete settlement of rights, in terms of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, submit the documentary evidence as prescribed by this Ministry in its letter No. 11-9/1998-FC (pt) dated 05/07/2013 in support thereof before formal approval.
11. The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar.

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12. Relevant directions contained in various notifications issued by the Central Government under the provisions of the Environment (Protection) Act, 1986 and Environment (Protection) Rules, 1986 made there under and as amended from time to time regarding use of fly ash shall be fully complied with.
13. The period of diversion under this approval shall be co-terminus with the period of lease to be granted in favour of User Agency or the project life whichever is less.
14. The pipeline shall be laid down 01 (one) mtr below the ground and after lying down of pipe line the ground will be leveled.
15. User agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, before formal approval if required.
16. No additional or new path will be constructed inside the forest area for transportation of construction materials to be used for execution of the project work. Camps shall not be allowed in Forest Area.
17. a) The User Agency shall submit six-monthly compliance report as on 1st January of every year to this office as well as to the Nodal Officer of the State.
b) The State Government shall monitor compliance of conditions of Forest Clearance and shall submit in this regard yearly report as on 31st December of every year.
18. Muck disposal, if required, should be taken up as per the scheme approved by the Forest Department.
19. Proposed labour camps outside the forest area are to be dismantled and removed. The labourers shall be sent back immediately after the completion of the work.
20. a) The forest land shall not be used for any purpose other than that specified in the project proposal.

b) The forest land proposed to be diverted shall under no circumstances be transferred to any other agencies, department or person without prior approval of Central Government.
21. The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
22. Soil conservation measures, if required, should be taken up by the User Agency for which fund should be provided as per the current rate of works.
23. No damage shall be caused to the flora and fauna of the area.
24. No labour camp shall be established on the forest land
25. The User Agency shall ensure that because of this project, no damage is caused to the Wildlife available in the area.

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5. The User Agency shall provide cooking material preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage /felling of trees and pressure on the adjacent forest areas.
 27. The User Agency and the State Government shall ensure compliance to provisions of all Acts, Rules, Regulations and Guidelines for the time being in force, as applicable to the project.
 28. Any other condition, which this office may stipulate for conservation of flora and fauna as and when necessity arises.
- After receipt of the compliance report on fulfilment of the condition Nos. 2, 3, 4, 5, 7, 8, 10, & 11, from the State Government, proposal will be considered for final approval under Section-2 of the Forest (Conservation) Act, 1980 by this office.

Yours faithfully,

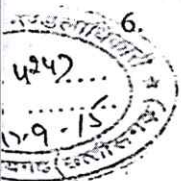
Kanwarjit Singh
(Kanwarjit Singh) 11/9/15

Addl. Principal Chief Conservator of Forests

Copy to:-

1. The Director (RO HQ), Ministry of Environment, Forests and Climate Change, AGNI, C-Wing, 3rd Floor, Indira Paryavaran Bhawan, Jor Bagh Road, Aliganj, New Delhi-110003.
2. The Addl. Principal Chief Conservator of Forests and Nodal Officer (LM), Aranya Bhavan, Medical College Road, Raipur (C.G.).
3. The Deputy Conservator of Forests, Raigarh Forest Division, Raigarh, Chhattisgarh.
4. The Executive Director (Project), M/s Jindal Steel and Power Ltd., Raigarh, Chhattisgarh.
5. Order file.
6. APCCF, Regional Office, Nagpur

Kanwarjit Singh
(Kanwarjit Singh) 11/9/15
Addl. Principal Chief Conservator of Forests





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GOVERNMENT OF INDIA
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय
MINISTRY OF ENVIRONMENT, FORESTS & CLIMATE
CHANGE

Regional Office (WCZ)
Ground Floor, East Wing
New Secretariat Building
Civil Lines, Nagpur - 440001
apccfcentral-ngp-mef@gov.in

F. No. FC-I/CH-02/2015-NGP/1111

Dated: 2nd December, 2016

To

The Principal Secretary (Forests),
Government of Chhattisgarh,
Forest Department, Mantralaya, Mahanadi Bhavan,
New Raipur (CG).

Sub: Re-diversion of 1.410 ha of forest land (0.658 ha of RF/PF land and 0.752 ha of Revenue Forest land) in favour of M/s Jindal Steel and Power Limited, Raigarh for laying of underground pipeline in Kelo Dam Project in Raigarh District in the State of Chhattisgarh -regarding.

Sir,

I am directed to refer to the State Government of Chhattisgarh letter No. F-5-18/2015/10-2 dated 23.05.2015 on the above mentioned subject seeking prior approval of the Central Government under Section 2 of the Forest (Conservation) Act, 1980. After careful examination of the proposal of the State Government was accorded 'in-principle' approval vide this Ministry's letter of even number dated 11.09.2015 subject to fulfilment to certain conditions prescribed therein. The Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh submitted the compliance report of conditions stipulated in the Stage-I approval and requested to consider the proposal for grant of final approval under the Forest (Conservation) Act, 1980.

In this connection, I am further directed to inform that based on the compliance report submitted by the Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh, vide his letter no. Bhu-Prabandh/Vividh/115-406/538 dated 9.03.2016 and letter no. Bhu-Prabandh/Vividh/115-406/2369 dated 16.09.2016, the Central Government hereby accords final approval under Section - 2 of the Forest (Conservation) Act, 1980 for diversion of 1.410 ha of forest land (0.658 ha of RF/PF land and 0.752 ha of Revenue Forest land) in favour of M/s Jindal Steel and Power Limited, Raigarh for laying of underground pipeline in Kelo Dam Project in Raigarh District in the State of Chhattisgarh subject to following conditions:

- (i) Legal status of the forest land shall remain unchanged.
- (ii) All compensatory levies, if any realized from the User Agency in future, under the project shall be transferred through e-challan to Ad-hoc Compensatory Afforestation Fund Management & Planning Agency (CAMPA) account pertaining to the State concerned.
- (iii) Compensatory Afforestation shall be taken up by the Forest Department over 1.578 ha on non forest land (Khasra No.625, 626, 611/1 & 611/2) Village - Pata, District- Raigarh from the funds already provided by the User. Compensatory Afforestation will be of a mix of local indigenous species and monoculture of species will be avoided. Cost to raise Compensatory Afforestation shall however be recovered from the secondary user agency if the same in respect of the forest land proposed for re-diversion has not already been recovered from the primary user agency
- (iv) The State Government has realized the Net Present Value (NPV) for the 7.83 ha of forest land to be diverted under the proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 31.10.2002, 01.08.2003, 28.3.2008, and 09.05.2008 in IA No.

1

566 in Writ petition (Civil) No. 202/1995 and as per the guidelines issued by this Ministry vide its letter No. 5-1/1998-FC(pt.II) dated 18/09/2003 as well as letter No. 5-2/2006-FC dated 03-10-2006 in this regard. However, additional amount of the NPV of diverted forest land, if any, becoming due after finalization of the same by the Hon'ble Supreme Court of India on receipt of the report from the Expert Committee shall be charged by the state Government from the User Agency;

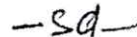
- (v) The User Agency shall pay the additional NPV, if so determined by the Hon'ble Supreme Court of India;
- (vi) To prevent any speculative trade in forest land no amount in the name of lease rent, annual fee/rent or any other such name shall be levied by the primary user agency from the secondary user agency in whose favour the forest land is re-diverted. However, in case the activity to be undertaken by the secondary user agency results in damage to the structure/property of the primary user agency, the same shall be restored by the secondary user agency to the full satisfaction of the primary user agency.
- (vii) The State Government shall ensure settlement of rights under the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 in accordance with the relevant guidelines issued by the MoEF&CC.
- (viii) The boundary of the re-diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar.
- (ix) The period of diversion under this approval shall be co-terminus with the period of lease to be granted in favour of User Agency or the project life whichever is less.
- (x) The pipeline shall be laid down 01 (one) mtr below the ground and after lying down of pipe line the ground will be leveled.
- (xi) User agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, before formal approval if required.
- (xii) No additional or new path will be constructed inside the forest area for transportation of construction materials to be used for execution of the project work. Camps shall not be allowed in Forest Area.
- (xiii) a. The User Agency shall submit six-monthly compliance report as on 1st January of every year to this office as well as to the Nodal Officer of the State.
b. The State Government shall monitor compliance of conditions of Forest Clearance and shall submit in this regard yearly report as on 31st December of every year.
- (xiv) Muck disposal, if required, should be taken up as per the scheme approved by the Forest Department.
- (xv) Proposed labour camps outside the forest area are to be dismantled and removed. The labourers shall be sent back immediately after the completion of the work.
- (xvi) a. The forest land shall not be used for any purpose other than that specified in the project proposal.
b. The forest land proposed to be diverted shall under no circumstances be transferred to



any other agencies, department or person without prior approval of Central Government.

- (xvii) The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
- (xviii) Soil conservation measures, if required, should be taken up by the User Agency for which fund should be provided as per the current rate of works.
- (xix) No damage shall be caused to the flora and fauna of the area.
- (xx) No labour camp shall be established on the forest land
- (xxi) The User Agency shall ensure that because of this project, no damage is caused to the Wildlife available in the area.
- (xxii) The User Agency shall provide cooking material preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage /felling of trees and pressure on the adjacent forest areas.
- (xxiii) The User Agency and the State Government shall ensure compliance to provisions of all Acts, Rules, Regulations and Guidelines for the time being in force, as applicable to the project.
- (xxiv) Any other condition, which this office may stipulate for conservation of flora and fauna as and when necessity arises.

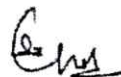
Yours faithfully,



(Charan Jeet Singh)
Scientist 'C'

Copy to:

- ✓ 1. The PCCF, Government of Chhattisgarh, Raipur
- 2. The Nodal Officer FCA), O/o of the PCCF, Government of Chhattisgarh, Raipur.
- 3. User Agency.
- 4. Guard File.



(Charan Jeet Singh)
Scientist 'C'